SEC-130: CYBER SECURITY

UNIT-II: IT Act

Salient Feature of IT Act 2000

1. Legal Recognition of Electronic Records and Digital Signatures

- E-documents and digital signatures have the same legal status as physical records and handwritten signatures
- Enables electronic contracts and e-commerce transactions

2. Electronic Governance

- **Encourages government agencies to accept digital records and digitally signed documents.**
- **Promotes efficiency and transparency in public administration.**

3. Regulation of Certifying Authorities

- **Establishes a framework for issuing and verifying digital signature certificates**
- **Certifying Authorities (CAs) are licensed to issue and validate digital signatures.**

4. Cybercrime and Penalties

- **The Act defines various cyber offenses and prescribes penalties for violations**
- **The provisions of this Act are implemented by the Central Government**

5. Liabilities of Intermediaries

- **Platforms like Facebook, YouTube and Google are not liable for user-generated content unless they fail to act on complaints**
- **Requires intermediaries to comply with government orders for content removal**

6. Provisions for Data Protection

- **Companies must implement security measures to protect sensitive personal data**
- **Unauthorized access, data leaks, and financial frauds are punishable offenses**

7. Cyber Appellate Tribunal

- A Special tribunal was created to handle disputes related to cyber law
- Deals with cases involving cybercrime and electronic commerce disputes

Offences and Penalties Under the IT Act 2000

- **Section 65: Tampering with computer source documents**
  - **Offence: Knowingly or intentionally or causing another to conceal, destroy or alter computer source code, program, system or network maintained by law.**
  - **Penalty: Imprisonment up to 3 years and/or fine up to two lakh rupees**

- **Section 66: Hacking with the computer system**
  - **Offence: Intentionally or knowingly causing wrongful loss or damage to the public or any person. Destroying or altering any information residing in a computer resource**
  - **Penalty: Imprisonment up to three years and/or fine up to two lakh rupees**

- **Section 67: Publishing of obscene information in eletronic form**
  - **Offence: Publishing or transmitting, or causing to be published, pornographic material in electronic form.**
  - **Penalty: On first conviction – imprisonment for up to five years and fine which may extend to one lakh rupees. On second conviction – imprisonment extended to 10 years and fine extended to 2 lakh rupees.**

- **Section 68: Power of controller to give directions**
  - **Offence: Failing to comply with the orders of controller**
  - **Penalty: Imprisonment up to three years and fine not exceeding two lakh rupees**

- **Section 69: Directions of Controller to a subscriber to extend facilities to decrypt information**
  - **Offence: Failing to assist the agency to intercept any information transmitted through any computer resource and decrypt it**
  - **Penalty: Imprisonment, which may extend to seven years**

- **Section 70: Protected System**
  - **Offence: Securing access or attempting to secure access to a protected system declared by an appropriate Government**
  - **Penalty: Imprisonment, which may extend up to ten years and fine**

Legal Provisions under the IT Act

- **Section 43**
  - This section of the IT Act **covers people who commit cybercrimes, such as harming a victim's computer**, without the victim's consent.
  - If a computer is destroyed in this way without the owner's permission, **the owner is entitled to reimbursement for the full amount of the damage**.

- **Section 66**
  - Applies to any dishonest or fraudulent behavior listed in **Section 43**.
  - In such cases, a **punishment of up to Rs. 5 lakh or up to three years in prison may be imposed**.

- **Section 66B**
  - This clause confirms a **potential three-year jail sentence and outlines the penalty for fraudulently obtaining stolen devices or communication equipment**.
  - **A fine of up to Rs. 1 lakh may also be levied, based on the severity.**

- **Section 66C**
  - This section **focuses on identity theft, including digital signatures and password hacking**.
  - This clause **carries a maximum sentence of three years in prison and a fine of one lakh rupees**.

- **<u>Section 66D</u>**
  - This section **deals with computer resource-based personation cheating**.
  - If found guilty, **the maximum penalty is three years in prison and a fine of up to one lakh rupees**.

- **Section 66E**
  - This clause **makes it illegal to take, publish, or transmit images of private regions without the subject's permission**.
  - If found guilty, **the punishment could be up to three years in prison and/or a fine of up to Rs. 2 lakh**.

- **Section 66F**
  - **Cyberterrorism incidents**.
  - If found guilty of a crime, **a person may be sentenced to life in prison**.

- **<u>Section 67</u>**
  - This entails the **electronic publication of profanity**.
  - A conviction **carries a maximum five-year prison sentence and a fine of up to Rs. 10 lakh**.

Recent amendments by the IT (Amendment Act) 2008

The 2008 Amendment made sweeping changes to the IT Act **to address new-age cyber threats and to improve the effectiveness of the law**.

1) Introduction of New Cyber Offences

- **Section 66C – Identity Theft**: Using someone's identity credentials (passwords, signature, etc.) dishonestly.
- **Section 66D – Cheating by Personation using Computer Resource** (e.g., phishing scams).
- **Section 66E – Violation of Privacy**: Capturing or transmitting images of a private area without consent.
- **Section 66F – Cyber Terrorism**: Acts intended to threaten the sovereignty, integrity, or security of India.

2) Decriminalization of Hacking as a Specific Offence

- **Section 66**, **formerly titled "Hacking"**, was **reframed to punish any form of dishonest or fraudulent damage to computer resources**.
- Broader terms like "unauthorised access" and "data corruption" were brought within scope.

3) Introduction of Section 43A – Compensation for Failure to Protect Data

- This section **imposes liability on body corporates for negligence in protecting sensitive personal data or information (SPDI)**.
- **Victims can claim compensation for unauthorized loss or misuse of personal data**.

4) Section 72A – Disclosure of Information Without Consent

- This **punishes disclosure of personal information obtained under lawful contract without the consent of the person, especially by service providers**.

5) From Digital Signature to Electronic Signature

- The original IT Act recognized only digital signatures. Post-2008, **the law was amended to legally recognize electronic signatures in addition to digital ones**.
- This widened the scope to include new forms of authentication technologies like biometrics, retina scans, OTPs, etc.

6) Enhanced Government Surveillance Powers (Section 69)

- Section 69 was amended to give Central and State Governments maximum authority.
- Conditions include the interest of sovereignty, integrity, defence, security of the State, public order, or preventing incitement to cognizable offence.

7) Strengthening of Adjudication and Appellate Mechanism

- **Cyber Appellate Tribunal (CAT) was given increased powers.**
- **Adjudicating Officers were given more autonomy** to resolve cases involving cyber contraventions and claims up to ₹5 crore.

Cyber Security WhatsApp Group

